

26SMCV00106 26SMCV00106

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Case Number: 26SMCV00106 Hearing Date: August 25, 2026 Dept: P

Tentative

Ruling

Anna

Nguyen v. Ashkhan Ghavami, M.D., et al., Case No. 26SMCV00106

Revelle

Aesthetics, Inc.'s Demurrer

Hearing

Date: August 25, 2026

Background

Plaintiff

Anna Nguyen sues Defendants Ashkhan Ghavami, M.D., a medical corporation, d/b/a Ghavami Plastic Surgery and Revelle Aesthetics, Inc. for medical malpractice, strict product liability, negligent product liability, and breach of the implied warranty of merchantability. Nguyen alleges that Ghavami performed a "Brazilian Butt Lift" and "Aveli Cellulite" procedure on her on August 1, 2024.

On January

1, 2026, Nguyen filed the complaint.

On April

29, 2026, Revelle filed this demurrer. On August 7, 2026, Nguyen filed opposition. On August 18, 2026, Revelle replied.

On May 26,
2026, Ghavami answered.

Arguments

Revelle

argues that Nguyen's strict products liability and negligent products liability claims fail because they do not allege any specific defect in Revelle's product. (Demurrer, p. 7.) Revelle argues that Nguyen's claim for breach of implied warranty fails because Revelle is not in vertical privity with Nguyen. (Id. at p. 8.)

In

opposition, Nguyen argues that she has alleged sufficient ultimate facts to state claims for strict and negligent products liability. Nguyen argues that the privity requirement should be excused in this case because it has been excused in cases involving food, drugs, pesticides, and inherently dangerous instruments. (Opposition, p. 10.) Nguyen argues that Revelle's Aveli Blade is like a vaccine or a drug. (Ibid.) in the alternative, Nguyen requests leave to amend. (Id. at p. 11.)

In

reply, Revelle argues that Nguyen's allegations are conclusory and do not state a claim for strict or negligent products liability. (Reply, p. 4.) Revelle also argues that Nguyen does not state a claim for breach of the implied warranty of merchantability, even assuming that an exception to the privity requirement applies, because she does not plead the remaining elements of breach of the implied warranty of merchantability. (Id. at p. 5.) Revelle argues that Nguyen has not made an offer of proof that justifies leave to amend. (Id. at p. 6.)

Legal Standard- Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands,

states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

Procedural
Issues

Revelle’s attorneys met and conferred with Nguyen’s attorneys by telephone on April 1, 2026, before filing the demurrer. (Ball Decl., ¶ 3.) The meet and confer requirement is satisfied.

Strict
Products Liability

A complaint states a claim for strict products liability where it claims (1) a defect in the manufacture or design of a product or a failure to warn; (2) causation; and (3) injury. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 [elements of strict liability]. See also Arriaga v. CitiCapital Commercial Corp. (2008) 167 Cal.App.4th 1527, 1534-1535 [potentially liable parties include manufacturers marketing products while knowing they are used without inspection for defects causing injuries, retailers, lessors, distributors, licensors, and anyone identifiable as “an integral part of the overall producing and marketing enterprise’....”].)

Nguyen's

strict products liability allegations are not as vague as Revelle contends, but do not provide sufficient detail to appraise Revelle of the claim against it. Nguyen alleges that she underwent a "Aveli Cellulite Procedure," performed using the Aveli Blade, a device Revelle manufactured, which was "inserted into the buttocks to cut out and remove cellulite dimples that were visible on the buttocks." (Complaint, ¶ 5.) Nguyen generally alleges that Revelle manufactured the Aveli Blade, which "was unsafe for its intended use by reason of defects in its manufacture, design, testing, components and constituents, so that it would not safely serve its purpose;" and that the Aveli Blade was designed defectively. (Complaint, ¶¶ 18-19.) These allegations are not ambiguous as to the types of defect Nguyen claims—she can claim both manufacturing and design defects in the alternative. Nguyen, however, does not allege how the Aveli Blade was defective or how that defect caused her injuries. Therefore, she does not state a claim for strict products liability.

Revelle's

demurrer to Nguyen's claim for strict products liability is SUSTAINED.

Negligent

Products Liability

To

state a claim for negligent products liability, a complaint must allege that the defendant owed the plaintiff a legal duty, breached that duty, that the breach was a proximate cause of the plaintiff's injury, and that the defect in the product was due to the defendant's negligence. (*Gonzalez v. Autoliv ASP, Inc.* (2007), 154 Cal. App. 4th 780, 793.)

Nguyen's

claim for negligent products liability is based on the same facts alleged in support of her claim for strict products liability. (See Complaint, ¶¶ 28-39.) Revelle's demurrer to Nguyen's claim for negligent products liability is SUSTAINED for the same reasons its demurrer to Nguyen's claim for strict products liability is sustained.

Breach

of the Implied Warranty of Merchantability

Revelle's

primary argument in the initial demurrer was that Nguyen did not allege that she was in privity with Revelle and therefore did not state a claim for breach of the implied warranty of merchantability. In reply to Nguyen's argument that an exception to the privity rule applies, Revelle argued that Nguyen's claim was deficient, even assuming that an exception applied. Since Revelle took the position, for the purposes of this motion, that an exception applied, the Court will not decide that question on this motion and will analyze the complaint assuming that such an exception applies.

A

complaint states a claim for breach of the implied warranty of merchantability under Comm. Code § 2314 et seq. if it alleges facts showing that (1) Plaintiff bought a product from defendant; (2) at the time of purchase defendant was in the business of selling the goods or was held out as having special knowledge or skill regarding the goods; (3) the product was not of the same quality as those generally acceptable and was not fit for the ordinary purposes for which such goods are used; (4) plaintiff took reasonable steps to notify defendant within a reasonable time that the product did not have the expected quality; (5) the plaintiff was harmed; and (6) the failure to have the expected quality was a substantial factor in the harm. ((CACI 1231; Comm. C. § 2314 et seq. See also *Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 636 ["The theory of an implied warranty of quality and fitness has been extended by the courts beyond contracts for the sale of goods to contracts for the construction of a new home...."].).)

Nguyen's

claim for breach of the implied warranty of merchantability suffers from the same defect as her claims for strict and negligent products liability. Though she alleges that she was injured as a result of a defect causing the Aveli Blade not to be of ordinary quality, she does not allege what the defect was. (See Complaint, ¶ 44.)

Revelle's

demurrer to Nguyen's claim for breach of the implied warranty of merchantability is SUSTAINED.

Leave

to Amend

Nguyen's

claims that Revelle's Aveli Blade was defective and caused scarring show that there is a reasonable probability that Nguyen will be able to amend the complaint to allege a more specific defect. Therefore, leave to amend is appropriate.

Conclusion

Revelle's

demurrer to Nguyen's claims for strict products liability, negligent products liability, and breach of the implied warranty of merchantability is SUSTAINED with leave to amend.